



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 17 judgments on Tuesday 2 July 2019 and 25 judgments and / or decisions on Thursday 4 July 2019.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site (www.echr.coe.int)*

Tuesday 2 July 2019

[Abboud v. Belgium \(application no. 29119/13\)](#)

The applicant, Jean Abboud, is a Belgian national who was born in 1960 and lives in Brussels.

The case concerns the length of proceedings in which Mr Abboud was tried, among other charges, for unlawfully passing himself off as a lawyer.

Until the end of 2002 Mr Abboud worked as a certified court translator and interpreter. In this capacity, he provided services, particularly in the context of hearings for asylum seekers who had been granted legal aid.

At the end of 2002 a dispute arose between Mr Abboud and the legal aid office of the French-speaking Bar Council of Brussels with regard to fee notes and invoices submitted by him. Then, in October 2003, a complaint was lodged against the applicant for fraud, unlawfully passing himself off as a lawyer and making false accusations.

In 2011 Mr Abboud was committed to stand trial before the first-instance criminal court. The applicant argued, unsuccessfully, that the prosecution case should be declared inadmissible for failure to comply with the reasonable time requirement.

In 2014 the first-instance court sentenced Mr Abboud to two years' imprisonment and a fine of 11,000 euros (EUR); half of each penalty was suspended. In 2016 the court of appeal held that the prosecution was time-barred. With regard to the civil aspects, the court of appeal held that the facts concerning the charge of unlawfully passing himself off as a lawyer were established and upheld the judgment. Mr Abboud was ordered to pay a symbolic fine of one euro, plus statutory interest, and costs in the civil proceedings (EUR 165 at first instance and EUR 165 on appeal).

Relying on Article 6 § 1 (right to a fair hearing within a reasonable time) and Article 13 (right to an effective remedy) of the European Convention on Human Rights, Mr Abboud complains about the length of the proceedings and alleges that no effective remedy was available to him.

[R.S. v. Hungary \(no. 65290/14\)](#)

The applicant, R.S., is a Hungarian national who was born in 1980 and lives in Püspökladány (Hungary). The case concerns the applicant being forced to take a urine test via a catheter on suspicion of his being under the influence of alcohol or drugs while driving.

In March 2010 the applicant was involved in a fight outside a nightclub. When stopped later that night by the police in his car, he refused to take a breathalyser test and was arrested for questioning. He was taken to the hospital for blood and urine tests in order to determine whether he was under the influence of drink or drugs.

At the hospital the applicant told the doctor on duty that he could not urinate. Police officers therefore asked the doctor to carry out a catheterisation. The procedure was carried out, as was a blood test.

The applicant subsequently lodged complaints with the authorities about his treatment by the police. The investigating authorities questioned the applicant, the police officers, a driver on duty at the hospital and medical staff. While all witnesses agreed that the applicant had been intoxicated, two conflicting versions of events emerged.

On the one hand, the police alleged that the applicant had consented to having the catheter inserted, voluntarily removed his clothes, and did not protest until the procedure had started. His aggressive behaviour had then made it necessary to pin him down and handcuff him in order for the procedure to be completed.

The applicant, on the other hand, stated that he had never consented to the catheter. Furthermore, he alleged that the police had used leg restraints during the incident.

The authorities dismissed his complaints, accepting the police officers' version of events that he had agreed to the catheterisation and had only been strapped down to prevent injuries.

The applicant brought judicial review proceedings, which were ultimately unsuccessful in July 2014.

In the meantime, in November 2011, he had been convicted of drink-driving and sentenced to a one year and nine months' suspended prison sentence.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 8 (right to respect for private life) of the European Convention, the applicant complains that the police's forcible taking of a urine sample from him constituted inhuman and degrading treatment and a serious intrusion into his physical integrity.

[Gorlov and Others v. Russia \(nos. 27057/06, 56443/09, and 25147/14\)](#)

The case concerns the permanent video surveillance of detainees in their cells by closed-circuit television cameras.

The applicants, Igor Gorlov, Denis Vakhmistrov and Viktor Sablin, are Russian nationals who were born in 1965, 1977 and 1976 respectively. The first two applicants are currently serving sentences in penal institutions in the Krasnoyarsk Region (Russia). The third applicant lives in Shilka in the Zabaykalskiy Region (Russia).

After being convicted of several offences, Mr Gorlov was placed in UP-288/T prison in Minusinsk, where he remains to date. His cell is under constant surveillance by prison guards, including female guards, by a closed-circuit television camera ("CCTV camera"). In the cells in which he has been kept there was a CCTV camera installed above the door, at ceiling level, in such a manner that the entire cell was clearly visible, including the bed. The toilet was located directly below the CCTV camera and was almost entirely hidden from the camera's view by a shield.

Between May 2007 and May 2010 Mr Vakhmistrov also served a sentence in UP-288/T prison. According to him, during his detention in that facility he was unable to take walks and undertake outdoor exercise in wintertime because he was not provided with winter boots of a suitable size, despite numerous requests to that effect. After he had been transferred to the penal institution IK-5 in Krasnoyarsk, his cell was under constant surveillance by prison guards by a CCTV camera installed inside the cell. The prison guard who monitored his cell was a woman.

Whilst serving a prison sentence in the Zabaykalskiy Region, Mr Sablin was transferred to a pre-trial detention centre in the same region and placed in a cell, where he remained until February 2014. According to him, the cell was designed for two inmates, but most of the time he was there alone. The cell was under permanent surveillance by a CCTV camera operated by female guards. It was

installed above the entrance door, in such a manner that the entire cell was clearly visible, including parts of the bed. The toilet was separated by a partition at each side, but had no cover, with the result that the upper part of the cubicle was visible.

On an unspecified date Mr Sablin lodged a complaint with the District Court, arguing that permanent video surveillance of his cell by female operators was humiliating as, in particular, he had to undress in plain view. However, in July 2013 the District Court dismissed his complaint, stating in particular that the situation had not debased Mr Sablin's dignity, as the female officers had acted within their competence and in the performance of their professional duties.

In September 2013 the Regional Court upheld the first-instance judgment on appeal.

Relying on Article 8 (right to respect for private life), the applicants complain, in particular, that constant surveillance of their cells, at times by female guards, by closed-circuit television cameras violated their right to respect for their private life. Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Vakhmistrov also complains that he was unable to take outdoor exercise during wintertime as the authorities refused to provide him with appropriate winter footwear. Mr Vakhmistrov and Mr Sablin also rely on Article 13 (right to an effective remedy) alleging a lack of effective remedies in respect of any of their complaints.

[Önal v. Turkey \(no. 44982/07\)](#)

The applicant, Ahmet Önal, is a Turkish national who was born in 1956 and lives in Istanbul.

The case concerns the applicant's conviction on account of a book published by his publishing house.

In December 1999 the publishing house owned by Mr Önal issued the biography of Hüseyin Baybaşın, a businessman of Kurdish origin who was accused of drug trafficking and membership of the PKK (the Kurdistan Workers' Party).

On 22 March 2000 the Beyoğlu public prosecutor charged the applicant with insulting the President of the Republic and denigration of the Republic and of the State security services on account of the contents of the book in question. On 7 February 2006 the Beyoğlu Assize Court convicted Mr Önal as charged and ordered him to pay a fine, in application of Articles 158 § 1 and 159 § 1 of the Criminal Code, considered to be more favourable to the applicant than the provisions of the new Criminal Code, which had entered into force on 1 June 2005. On 3 April 2007 the Court of Cassation upheld the Assize Court's judgment.

The applicant alleges that his conviction constituted a breach of his right to freedom of expression, protected by Article 10.

Thursday 4 July 2019

[Kurt v. Austria \(no. 62903/15\)](#)

The applicant, Senay Kurt, is an Austrian national who was born in 1978 and lives in Unterwagram (Austria). She married E. in 2003. They had two children, A., born in 2004, and B., born in 2005.

The case concerns the murder of A. by his father after previous allegations of domestic violence by Ms Kurt against the father.

In July 2010 Ms Kurt called the police because her husband had beaten her. She alleged that he had been beating her for years and that recently the situation had worsened. The police noted that the applicant showed signs of injuries. A barring order (*Betretungsverbot und Wegweisung zum Schutz vor Gewalt*) was issued against E. This order obliged him to stay away from their common apartment as well as from Ms Kurt's parents' apartment for 14 days. E. complied with the barring order, and no further incidents were reported to the police. Although Ms Kurt had refused to testify, in January

2011 the Graz Regional Criminal Court convicted E. of bodily harm and dangerous threatening behaviour and sentenced him to three months' imprisonment, suspended for three years with probation. Until May 2012 no further incidents were reported to the police.

In May 2012 Ms Kurt went to the St. Pölten District Court and filed for divorce. On the same day, she reported her husband to the police for rape and making dangerous threats. She added that he had beaten her regularly, sometimes slapping the children as well. She was in great fear of her husband and stated that she wanted to protect herself and her children. A police officer issued a barring order against E., who accompanied the police voluntarily to the police station.

Two days later E. returned to the police to enquire whether it would be possible to contact his children. The police took the opportunity to confront him with his children's statements that he had beaten them. E. confessed that he had beaten them "every now and then", but "only as an educational measure", without being aggressive. He added that his children were everything to him.

On 25 May 2012 E. went to A. and B.'s school. He asked A.'s teacher if he could speak briefly to his son in private. The teacher, who later stated that she had not been informed of the problems in the family, agreed. When A. did not return to class, she started looking for him. She found him in the school's basement, where he had been shot in the head. His sister B., who had witnessed her brother being shot, was not injured. A warrant for E.'s arrest was issued immediately and the police started investigations, but E. was found dead in his car that day, having shot himself.

In February 2014 Ms Kurt instituted official liability proceedings. She argued that the public prosecutor's office should have requested that E. be held in pre-trial detention after she had reported him to the police and that there had been a real and immediate risk that he would reoffend against his family. She claimed 37,000 euros (EUR) in compensation for non-pecuniary damage. She also applied to the court for a declaratory judgment that Austria was liable for any possible future damage caused by the murder of her son, which she assessed at EUR 5,000.

In November 2014 the St. Pölten Regional Court dismissed her claim. It held, in particular, that taking into account the information the authorities had had to hand at the relevant time, there had not been discernible an immediate risk to A.'s life. In January 2015 the Vienna Court of Appeal dismissed her appeal, and in April 2015 the Supreme Court rejected an extraordinary appeal on points of law.

Relying on Articles 2 (right to life), 3 (prohibition of inhuman or degrading treatment) and 8 (right to respect for family life), Ms Kurt complains that the Austrian authorities failed to protect her and her children from her violent husband, which had resulted in him murdering their son.

[Alternative für Deutschland \(AFD\) v. Germany \(no. 57939/18\)](#)

The applicant party, Alternative für Deutschland (AfD), is a German political party that was founded on 6 February 2013. It has participated in elections to the European Parliament, the Federal Parliament (*Bundestag*) and parliaments of the *Länder*.

The case concerns public comments by the Federal Office for the Protection of the Constitution about its suspicion of endeavours hostile to the constitution by the applicant party.

The Federal Office for the Protection of the Constitution (*Bundesamt für Verfassungsschutz*; the Office) is Germany's domestic intelligence service responsible for the surveillance of endeavours hostile to the constitution (*verfassungsfeindliche Bestrebungen*). In October 2018, in a hearing before the Federal Parliament, the Office's president stated that it was actively gathering information on the AfD in order to enable the authorities to decide whether to put the applicant party or parts of it under surveillance.

In January 2019 the Office announced that the applicant party's youth organisation, *Junge Alternative*, as well as a sub-structure of the AfD called *Der Flügel*, were suspected of endeavours that were hostile to the constitution (*Verdachtsfall*). In particular, there was sufficient evidence of an

anti-migration and anti-Muslim attitude; their programmes contained positions which clearly violated human dignity, and members of the sub-structure had ties to extremist groups. At the same time, the Office stated that there was no such suspicion for the party as a whole, but that the Office would continue to monitor the AfD at the level of a preliminary suspicion (*Prüffall*).

In February 2019 the Cologne Administrative Court decided in favour of the applicant party, finding that there was no basis in domestic law for the Office for the Protection of the Constitution to have considered the applicant publicly in such a category (*Prüffall*).

Relying on Article 10 (freedom of expression) and Article 11 (freedom of assembly and association), as well as Article 14 (prohibition of discrimination) in conjunction with Article 10 and Article 11, the applicant party complains that the Federal Office for the Protection of the Constitution was about to inform the public that it was suspected of endeavours hostile to the constitution (*Verdachtsfall*), a category which brought about stigmatisation and a “*de facto* ban”.

It also complains under Article 6 (right to a fair trial) and Article 13 (right to an effective remedy) that it did not have any effective remedy at national level to protect its rights against such information being given to the public.

[Zappa S.A.S. v. Italy \(no. 43842/11\)](#)

The applicant, Zappa S.a.s., is a company with its registered office in Padua.

The case concerns the return to State property of a coastal fishing basin known as “Valle Zappa” in the Venetian Lagoon.

In July 1972 the applicant company became the owner of the Valle Zappa, one of many “fishing valleys” situated in a lagoon in the province of Venice. Made up of small islands and bodies of water which are separated from the sea by dams, these basins were given over to fisheries. In 1989, 1991 and 1994 the companies operating in these fishing basins were instructed by the Padua financial authorities to vacate the bodies of water in question, on the grounds that they were State property.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicant company complains that that it has lost title to its property.

[Korban v. Ukraine \(no. 26744/16\)](#)

The applicant, Gennadiy Korban, is a Ukrainian national who was born in 1970 and lives in Dnipro (Ukraine). He worked as a senior local government official from 2014 until his resignation in March 2015. In July 2015 he became the leader of a new political party, the Ukrainian Union of Patriots (“UKROP”). Shortly after, he ran for the mid-term parliamentary elections in Chernigiv and as mayor of Kyiv and lost.

The case mainly concerns Mr Korban’s arrest following several sets of criminal proceedings brought against him.

In the first two sets of proceedings, in August 2014 and February 2015, he was suspected of taking two public officials hostage. In August 2015 a third set of proceedings was brought on suspicion of embezzling a charity’s funds. In October 2015 a fourth set of proceedings was instituted over complaints by an electoral officer about receiving threatening telephone calls from Mr Korban.

In the context of the first three sets of proceedings, as well as another charge of creating a criminal organisation, Mr Korban was arrested on 31 October 2015 at his home by a special forces unit, which broke into his flat because he refused to open the door. He was arrested without a judicial warrant, a measure permitted under domestic law for a maximum of three days in specific urgent cases.

When the three-day time-limit expired, on 3 November 2015, Mr Korban was brought before a judge and released in the courtroom. He was, however, immediately re-arrested, the authorities relying on the charge brought in the fourth set of proceedings.

He spent the next seven months alternately in pre-trial detention and under house arrest. He was released on 7 June 2016 subject to an undertaking not to abscond.

In March 2016 he pleaded guilty to the kidnapping in the first set of proceedings, signing a friendly settlement in which he agreed to three years' detention in a semi-open prison, suspended for a probation period of one year and six months. The remaining proceedings were discontinued in September 2017 for lack of evidence.

Mr Korban makes several complaints under Article 3 (prohibition of inhuman or degrading treatment), alleging that the conditions of transportation during a transfer on 2 November were inadequate; that he was forced to participate from 26 to 28 December 2018 in lengthy court hearings, including throughout the night, to decide on a request to place him in detention, despite his having just undergone a coronary operation; and that he was kept in a metal cage during three court hearings on his case in January 2016.

Relying on Article 5 § 1 (right to liberty and security), he also alleges that his arrest on 31 October 2015 and re-arrest on 3 November 2015 were unlawful and arbitrary, questioning in particular why such measures were taken more than a year after the institution of the first set of criminal proceedings against him. He also relies on Article 5 §§ 3, 4, and 5 (entitlement to trial within a reasonable time or to release pending trial / right to have lawfulness of detention decided speedily by a court / right to compensation) to complain that his pre-trial detention and house arrest were not sufficiently justified, that there was no effective procedure for him to challenge the lawfulness of his arrest and re-arrest, and that he had no enforceable right to compensation for the alleged breach of his rights under Article 5.

He further alleges under Article 18 (limitation on use of restrictions on rights), taken in conjunction with Article 5, that the real reasons for his criminal prosecution and deprivation of liberty were political, in particular because he had become a rival to the ruling party and his new political party was sharply critical of those in power.

Lastly, he complains that several high-ranking public officials made statements to the media labelling him as the leader of a criminal organisation who was guilty of serious criminal offences, thus prejudging the case against him, in breach of Article 6 § 2 (presumption of innocence).

[Svitlana Ilchenko v. Ukraine \(no. 47166/09\)](#)

The applicant, Svitlana Ivanivna Ilchenko, is a Ukrainian national who was born in 1951 and lives in Kyiv.

The case concerns her complaint about the authorities depriving her of her property by knocking down her garage.

Ms Ilchenko owned a garage, registered in her name in February 1995, which was situated in the courtyard of her apartment building.

In 2002 the local authorities began to plan a property development on the land where the garage was located and it therefore had to be knocked down. Ms Ilchenko was invited to negotiate compensation on an informal basis, however, she did not follow up on those offers.

Court proceedings began in July 2003, which eventually led to an order for the garage to be demolished, which was carried out by bailiffs in August 2005. The domestic courts held in particular that Ms Ilchenko had owned the garage but had never properly obtained the right to use the land underneath it. Accordingly, she was a squatter and had no right to compensation. The Supreme Court upheld the lower courts' findings in those proceedings in March 2009.

Ms Ilchenko complains that the demolition of her garage violated her right to the peaceful enjoyment of her possessions protected by Article 1 of Protocol No. 1 (protection of property).

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 2 July 2019

Name	Main application number
Antonov and Others v. the Republic of Moldova and Russia	315/10
Beşleagă v. the Republic of Moldova and Russia	48108/07
Electronservice-Nord S.A. v. the Republic of Moldova	12918/12
Gheorghiță v. the Republic of Moldova	5334/06
Melnic v. the Republic of Moldova	46351/08
Mititelu and Antonovici v. the Republic of Moldova	15989/11
Panteleiciuc v. the Republic of Moldova and Russia	57468/08
Novaya Gazeta and Milashina v. Russia	4097/06
Popov v. Russia	25082/06
Ryabinina and Others v. Russia	50271/06
Daş v. Turkey	36909/07
Kılınç v. Turkey	73954/11
Kok v. Turkey	32954/12

Thursday 4 July 2019

Name	Main application number
Matić v. Croatia	1962/12
Neagu v. the Republic of Moldova	26632/11
V.K.K. v. Russia	38057/14
Aksoy v. Turkey	17633/08
Ayan and Others v. Turkey	20972/15
Bek v. Turkey	35671/09
Erayman v. Turkey	14749/06
Ersoy v. Turkey	74119/14
Gökner and Others v. Turkey	78671/14
Karalar v. Turkey	1964/07
Kayır and Others v. Turkey	66571/09
Kurt v. Turkey	55045/07
Menekşe v. Turkey	78807/11
Özçelik v. Turkey	50121/12
Şen v. Turkey	77253/14
Akymenko v. Ukraine	32567/11
Ishchenko v. Ukraine	35374/12
Kanna and Tsyganok v. Ukraine	24751/10
P. v. Ukraine	40296/16
Sokolovskyy v. Ukraine	6433/18

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Press contacts

echrpress@echr.coe.int | tel: +33 3 90 21 42 08

Tracey Turner-Tretz (tel: + 33 3 88 41 35 30)

Denis Lambert (tel: + 33 3 90 21 41 09)

Inci Ertekin (tel: + 33 3 90 21 55 30)

Patrick Lannin (tel: + 33 3 90 21 44 18)

Somi Nikol (tel: + 33 3 90 21 64 25)

The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.